

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

17CV3450

LEVAR T. HENRY,

Write the full name of each plaintiff.

-against-

(SEE ATTACHED)

Write the full name of each defendant. If you cannot fit the names of all of the defendants in the space provided, please write "see attached" in the space above and attach an additional sheet of paper with the full list of names. The names listed above must be identical to those contained in Section IV.

No. _____

(To be filled out by Clerk's Office)

42 U.S.C. §1983

COMPLAINT

(Prisoner)

Do you want a jury trial?

☒ Yes ☐ No

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NOTICE

The public can access electronic court files. For privacy and security reasons, papers filed with the court should therefore *not* contain: an individual's full social security number or full birth date; the full name of a person known to be a minor; or a complete financial account number. A filing may include *only*: the last four digits of a social security number; the year of an individual's birth; a minor's initials; and the last four digits of a financial account number. See Federal Rule of Civil Procedure 5.2.

THE CITY OF NEW YORK; POLICE OFFICER GARY PEREZ, SHIELD #27357, in his Individual Capacity; POLICE OFFICER RANDYS FIGUEROA, SHIELD #19407, in his Individual Capacity; POLICE OFFICER CARLOS PIMENTEL, SHIELD #07608, in his Individual Capacity; POLICE OFFICER CARLOS THOMAS, SHIELD #21295, in his Individual Capacity; POLICE OFFICER JUAN CARRERO, SHIELD #00160, in his Individual Capacity; POLICE OFFICER WILLIE THOMPSON, SHIELD #15823, in his Individual Capacity; RAVIKALA PUTTAMADU, MD, in his Individual Capacity; FDNY EMT JOHN DOE LIGHTSKIN, in his Individual Capacity; FDNY EMT JOHN DOE DARKSKIN, in his Individual Capacity; and NEW YORK CITY DEPARTMENT OF CORRECTIONS (NYCD),

Defendants.

I. LEGAL BASIS FOR CLAIM

State below the federal legal basis for your claim, if known. This form is designed primarily for prisoners challenging the constitutionality of their conditions of confinement; those claims are often brought under 42 U.S.C. § 1983 (against state, county, or municipal defendants) or in a "Bivens" action (against federal defendants).

☒ Violation of my federal constitutional rights

☐ Other: _____

II. PLAINTIFF INFORMATION

Each plaintiff must provide the following information. Attach additional pages if necessary.

<u>LEVAR</u>	<u>T.</u>	<u>HENRY</u>
First Name	Middle Initial	Last Name

State any other names (or different forms of your name) you have ever used, including any name you have used in previously filing a lawsuit.

349-16-09157

Prisoner ID # (if you have previously been in another agency's custody, please specify each agency and the ID number (such as your DIN or NYSID) under which you were held)

M.D.C.

Current Place of Detention

125 WHITE STREET

Institutional Address

<u>NEW YORK, NEW YORK</u>	<u>NEW YORK</u>	<u>10013</u>
County, City	State	Zip Code

III. PRISONER STATUS

Indicate below whether you are a prisoner or other confined person:

☒ Pretrial detainee

☐ Civilly committed detainee

☐ Immigration detainee

☐ Convicted and sentenced prisoner

☐ Other: _____

IV. DEFENDANT INFORMATION

To the best of your ability, provide the following information for each defendant. If the correct information is not provided, it could delay or prevent service of the complaint on the defendant. Make sure that the defendants listed below are identical to those listed in the caption. Attach additional pages as necessary.

Defendant 1: GARY PEREZ 27357
 First Name Last Name Shield #
POLICE OFFICER 7pm-2am
 Current Job Title (or other identifying information)
HOUSING BUREAU PSA 6
 Current Work Address
NEW YORK NEW YORK 10039
 County, City State Zip Code

Defendant 2: RANDYS FIGUEROA 19407
 First Name Last Name Shield #
POLICE OFFICER 7pm-2am
 Current Job Title (or other identifying information)
HOUSING BUREAU PSA 6
 Current Work Address
NEW YORK NEW YORK 10039
 County, City State Zip Code

Defendant 3: CARLOS PIMENTEL 07608
 First Name Last Name Shield #
POLICE OFFICER 7pm-2am
 Current Job Title (or other identifying information)
HOUSING BUREAU PSA 6
 Current Work Address
NEW YORK NEW YORK 10039
 County, City State Zip Code

Defendant 4: CARLOS THOMAS 21295
 First Name Last Name Shield #
POLICE OFFICER 7pm-2am
 Current Job Title (or other identifying information)
HOUSING BUREAU PSA 6
 Current Work Address
NEW YORK NEW YORK 10039
 County, City State Zip Code

Defendant 5: JUAN CARRERO 00160
 First Name Last Name Shield #
POLICE OFFICER 7pm-2am
 Current Job Title (or other identifying information)
HOUSING BUREAU PSA 6
 Current Work Address
NEW YORK NEW YORK 10039
 County, City State Zip Code

Defendant 6: WILLIE THOMPSON 15823
 First Name Last Name Shield #
POLICE OFFICER 7pm-2am
 Current Job Title (or other identifying information)
HOUSING BUREAU PSA 6
 Current Work Address
NEW YORK NEW YORK 10039
 County, City State Zip Code

Defendant 7: JOHN DOE
 First Name Last Name
 Shield # EMT CALL
FDNY EMT DARKSKIN 8/18/16 9PM-10PM TO 154th St.
 Current Job Title (or other identifying information)
NEW YORK NEW YORK 10039
 Current Work Address
NEW YORK NEW YORK 10039
 County, City State Zip Code

Defendant A: JOHN DOE
 First Name Last Name
 Shield # EMT call to
FDNY EMT LIGHTSKIN 8/18/16 9PM-10PM 154th Street
 Current Job Title (or other identifying information)
NEW YORK NEW YORK 10039
 Current Work Address
NEW YORK NEW YORK 10039
 County, City State Zip Code

Defendant 9

First Name Last Name Shield #
 MD HARLEM HOSPITAL 8/18/16 10pm-9am
 Current Job Title (or other identifying information)
 HARLEM HOSPITAL EMER. 506 LENOX AVENUE
 Current Work Address
 NEW YORK NY 10037
 County, City State Zip Code

Defendant 10

THE CITY OF NEW YORK
 First Name Last Name Shield #
 Current Job Title (or other identifying information)
 Current Work Address

Defendant 11

County, City State Zip Code
 NEW YORK CITY DEPT. OF CORRECTIONS

First Name Last Name Shield #

Current Job Title (or other identifying information)

Current Work Address

County, City State Zip Code

Defendant

First Name Last Name Shield #

Current Job Title (or other identifying information)

Current Work Address

County, City State Zip Code

V. STATEMENT OF CLAIM

Place(s) of occurrence: W. 154th STREET, AND AT HOUSING BUREAU PSA 6 ;
RIKERS ISLAND

Date(s) of occurrence: AUGUST 18, 2016 - APRIL 2017

FACTS:

State here briefly the FACTS that support your case. Describe what happened, how you were harmed, and how each defendant was personally involved in the alleged wrongful actions. Attach additional pages as necessary.

1-On August 18, 2016 at about 9PM Plaintiff circled his neighborhood
looking for a parking space; upset Plaintiff played his music loud.
Plaintiff parked his Chevy Sub LTZ 1500 (SUV) on 154th Street, NYC.
Title and identification #1GNFK16378R259076 (V.I.N).

2-Due to prior racially profiling issues with the NYPD, false complaints
and traffic violation reports, break in's, vandalism and car accidents;
Plaintiff installed two (2) inf red night vision dash cameras. These
audio/video dash cams sat attached to the windshield and the 2nd
attached to the back window. Both cams contained 32GB SD memory cards.
These cams remain on for video surveillance when Plaintiff is driving
or not. On August 18, 2016 both video surveillance cams were recording
during this incident; and violation of Plaintiff's Civil Rights.

(See EXHIBIT A)

3-On August 18, 2016 after parking his SUV Plaintiff is ambushed by
2-3 individuals. Plaintiff wakes up after an attack and learns these
individuals are PSA6 Police Housing Bureau Officers RANDYS FIGUERO,
GARY PEREZ and JUAN CARRERO. Plaintiff was beaten and sodomized.
Plaintiff is illegally arrested and put into Harlem Hospital Emer.
room.

4-Plaintiff wife and children observe him being wheeled out of PSA6

in a wheelchair in which he has to sit sideways due to pain. Ladonna D. Henry (wife) ask FDNY EMT's what hospital will Plaintiff (husband) be taken and FDNY EMT's state they can not tell her. Plaintiff advises wife to get the keys to his SUV, that's when Ladonna D. Henry advises the PSA6 desk officer told her Plaintiff's SUV is "EVIDENCE" and the keys to Plaintiff's SUV could not be turned over to her. The desk officer got this information from the arresting officer. Ladonna D. HENRY calls I.A.B. and starts complaint.'

5-At or about 10AM August 19,2016 Plaintiff is released from Harlem Hospital Center. Police Officers take Plaintiff back to ~~PSA6 to be finger printed. Arresting officers are no where to be~~ found. Plaintiff's 2008 Chevy Sub LTZ 1500 is no where to be found; SUV keys no where to be found. (See EXHIBIT B)

6-Plaintiff meets court appointed attorney Percy Diego Gayanilo (188). Plaintiff informs the attorney that he would like to testify before a Manhattan Grand Jury. Plaintiff knows his rights were violated. Plaintiff advises attorney of witnesses on the scene, video surveillance captured from his SUV and FDNY EMT's that wheeled him into the PSA6 Housing Bureau.

7-Plaintiff is interviewed by I.A.B. (INTERNAL AFFAIRS BUREAU) at 125 White Street (MDC), New York, NY. Plaintiff picks officers involed out of line up. Moreover, he explains to them everything that happened and where to find evidence(SUV video surveillance). Plaintiff shows I.A.B. officers his scar's on head, wrist and ancles. They advise him they are not allowed to take photo's anymore. They inform plaintiff of his wifes call and they would investigate.

8-On or about August 24,2016 Plaintiff appeare with attorney Percy D. Gayanilo. Plaintiff informs the court by raising his hand. He ask the judge could he testify before the Manhattan Grand Jury (100 Centre Street, NYC). The Judge informs Plaintiff and Attorney "2nd

call". Plaintiff is never produced again for the 2nd call promised to him. Plaintiff never enters another court room until September 19, 2016 (Part 23). Plaintiff is indicted for charge he was never arrested for; and learns Percy D. Gayanilo waived Grand Jury. It breeds conflict between plaintiff and attorney. Plaintiff had already made statements to I.A.B. and mailed out a notarized Personal Injury Claim against THE CITY OF NEW YORK. Plaintiff did not understand why PERCY D. GAYANILO did not want to put the evidence before the Grand Jury. The only response plaintiff got was, "You got a violent history". Plaintiff did not know what video had to do with history. It appeared to plaintiff that he was going against a machine. A machine that wanted to cover sodomy, police brutality and evidence. "Manhattan courts are different", and "This is Manhattan!!!", also, "I've been working here 15 years", expressed defense attorney Percy D. GAYANILO. Plaintiff noticed that he was being railroaded by the machine called Manhattan his attorney was a part of. The Manhattan plaintiff knew was not corrupt. His Manhattan protected peoples Right's (Constitutional Rights). Plaintiff's next court date was pushed to December 12, 2016. Percy D. Gayanilo did not show. (See EXHIBIT C)

9-Plaintiff receives Felony Complaint. On September 23, 2016 PSA6 Housing Bureau Officers GARY PEREZ and RANDYS FIGUERO testified at a Post Release Supervision Preliminary Hearing (Rikers Island). Even with the help of P.O. PATINA CARTER-CLARKE who lied about supervising Plaintiff since release in 2012; and SHARON BURNETT (Hearing Officer) who was also very bias against Plaintiff during this hearing. "We observed him when he came out of his truck.", stated RANDYS FIGUERO. He also states, "I was in the cells with him ...I don't remember the exact time. I would say 15, 20 minutes." "No, before. We saw the car.", stated P.O. GARY PEREZ. Plaintiff gave his defense attorney these minutes from the Preliminary Hearing. Percy D. Gayanilo (18B) advises Plaintiff, "They always lie and they will lie again". (See EXHIBIT D, E, & F)

10-Plaintiff meets with Private Investigator JOHN SCANLAN (914-424-0658, PO BOX 149, BRONX, NEW YORK 10470). Plaintiff explained some of the things that needed to be investigated in his case. The investigator worked on a prior case for plaintiff; moreover, this investigator had prior knowledge of plaintiff's SUV and it's video camera surveillance (front and rear dash cams). Plaintiff meets with defense attorney Percy D. Gayanilo, who tries to convince plaintiff he does not need a Private Investigator. Gayanilo (188) advises plaintiff to have his wife (LADONNA D. HENRY) to gather and bring evidence to him. The attorney seemed to be in fear that the Part 23 Judge (Ross) would not grant any hearings if John Scanlan was hired. Due to plaintiff's past the attorney did not believe there was any chance anyone in Manhattan that wanted plaintiff to have any Constitutional Right's. After a threat to fire Gayanilo, John Scanlan was said to be hired. John Scanlan concurred he had been hired. Plaintiff knew John Scanlan to work/investigate but nothing happened. Gayanilo blamed it on plaintiff that the investigation had not started but didn't feel it was his responsibility to communicate with Scanlan. No meeting between Scanlan, Gayanilo and plaintiff ever surfaced. Plaintiff's material expressing his Right's were violated fall on deaf ears. Seemed to plaintiff nobody wanted the truth to come out. Nobody wanted to return his vehicle or be held accountable for abuse.

11-ERIN NAGY, Attorney for Plaintiff (Legal Aid Society) at Preliminary Hearing informed Plaintiff after the September 23, 2016 minutes were obtained she would file a writ. At the next meeting Erin Nady replied since Henry being held in Manhattan (MDC 125 White Street NYC) and not on Rikers Island she could not file the writ. Nady advised Manhattan courts are different but if Henry was being held on Rikers Island writ could be filed in the Bronx. Plaintiff is informed by Nady that the Manhattan A.D.A. will not let the arresting officers testify again at the Final Hearing. Nady also advises defense attorney Percy D. Gayanilo doesn't return any of her calls. (See EXHIBIT G)

12-Plaintiff receives a letter dated September 19,2016 from THE CITY OF NEW YORK OFFICE OF THE COMPTROLLER. This missive expresses Defective Service, "If you wish to pursue your claim against the City, you may file your Notice of Claim by a proper method of service within 10 days of receipt of this letter".Plaintiff sends again via Certified Mail. Plaintiff receives a second letter dated October 4,2016. Claim No:2016PIO28447 appears. Third letter from ANASTASIA PEREZ, Examiner- personal injury division; dated October 5,2016. Soon after plaintiff sends documents pertinent to the claim (SS#, DOB, arrest report, Preliminary Hearing minutes, medical records particularly emergency room & ambulance and Precint). There is no response from Anastasia Perez (Examiner). A fourth letter dated October 14,2016 from Michael Harary, Esq., Director, Contract Services informs Plaintiff of "NOTICE OF 50-H HEARING" set to be held on December 5,2016, 9:00AM. Prior to the date set Plaintiff contacts Michael Harary, Esq. Plaintiff explains he is being detained in Manhattan Detention Complex (MDC). Attorney Harary explains that the date could be pushed back until Plaintiff is released because the hearing could not be held if Plaintiff is detained. Another date is set for March 1,2017. A fifth letter is received dated November 28,2016 with adjournment dated expressed prior in phone call to Micheel Harary, Esq. Plaintiff writes a response to the communication from Harary. Plaintiff was due to be sentenced in a situation prior to the incident (8/18/16). Plaintiff also writes Anastasia Perez, Examiner and ask could she communicate with Attorney Harary regarding the documents sent by plaintiff. No response from Perez or Harary. (See EXHIBIT H)

13-As Early as August18,2016 Plaintiff has tried to obtain his SUV. Moreover, he knew that the video could change the way the Grand Jury heard the case. First PSA6 denied Plaintiff's wife the keys on August 18,2016. Plaintiff supplied his defense attorney Percy D. Gayanilo with "Power Of Attorney" document to hand to his wife in court. Credit cards, bank card, PO Box keys, ID card (Drivers License), cash, unlocked I-Phone containing personal information (Social Security cards, Birth Certificates and medical documents) Henry scanned and

stored. These important documents belonged to Plaintiff and family (2 adults and 6 children). Plaintiff and wife fears identity thief of documents. Over 2,000 family photos (2012-2016). Attorney Gayanilo tells Plaintiff's wife that he never got the "POWER OF ATTORNEY" legal document from Plaintiff. About a month later Attorney Gayanilo mails document to the wife. The document was dated August 23, 2016 ("POWER OF ATTORNEY"). Plaintiff prepares another "POWER OF ATTORNEY" dated August 25, 2016 and mails it to his wife. Ladonna D. HENRY is unable to locate Plaintiff's SUV. Plaintiff prepares another "POWER OF ATTORNEY" dated October 1, 2016 now giving JAMES CHARLESTON powers. Plaintiff obtains a VDF via Gayanilo which does not list the SUV as evidence. Attorney Gayanilo explains maybe the Assistant District Attorney will add it later. Plaintiff explains to Gayanilo the video surveillance will be non-existent by then and Gayanilo should stop allowing evidence to be hidden. Plaintiff now believed the CITY would not investigate the CITY or make the CITY work against the CITY. Attorney Gayanilo who was hired by the CITY to represent HENRY would not bring to light the violation of Plaintiff's Rights or push to spend CITY money to prove the violation. (See EXHIBIT I)

14-Late December 2016 plaintiff gets a visit from Sgt. Liss and a partner at 125 White Street, New York, New York. Sgt. Liss is a I.A.B. Group #10 officer who is employed by THE CITY OF NEW YORK. It had been nearly six months since Plaintiff heard or saw a I.A.B. officer. Plaintiffs case was neglected and now passed over to this Sgt. who was very disrespectful about the incident. Sgt. Liss insist and demanded Plaintiff tell him how PEREZ, FIGUERO and CARRERO knocked him out and sodomized him. It seemed to Plaintiff I.A.B. was not serious about the complaint. Nothing had been investigated. From August-December nobody had spoken to Plaintiff's wife or witnesses Mark Noel, Amanda Brown, EMT's, the phone video of the scene going around the neighborhood and the footage from the SUV property of the Plaintiff. I.A.B. refused to investigate and it truly scared the Plaintiff. Moreover, the blatant lies at the Preliminary

Hearing by PSA6 Housing Bureau Cops PEREZ and FIGUERO; who had no warrants or training. Moreover, PEREZ and FIGUERO violated the Constitutional Rights' of the Plaintiff.

15-THE CITY OF NEW YORK DEPARTMENT OF CORRECTIONS (NYCD) medical and mental health care for Plaintiff falls below a constitutional level of care. Plaintiff entered NYCD with several injuries. Plaintiff had to wait weeks to visit sick call which is suppose to run 5 days a week. Moreover, the cells on Rikers Island fall below a constitutional level of prison life. The INMATE GRIEVANCE staff never shows up. Plaintiff has yet to get a response on several grievance forms. This Inmate Grievance system is broken. Furthermore, the mats NYCD provides as a sleeping unit is more fit for yoga, bad enough pillows are not provided upon entering NYCD. Plaintiff's back and head injuries have not healed. The mat is made by the BOB BARKER company. The tan Rikers Island clothing issued to plaintiff is also made by BOB BARKER. NYCD refused to give Plaintiff his personal clothing during court dates inwhich Plaintiff prepared for Grand Jury and/or trial. The tan uniform is only for poor inmates like Plaintiff who can not bail out and come to court in his own clothing. Plaintiff's spirit and health were under attack. Grievances do not follow when HENRY is moved to other Riker's jails. Plaintiff believes he was subject to asbestos while in AMKC (Riker's Island). (See EXHIBIT J & B)

16-Plaintiff was denied 1 hr. recreation, phone, current events (T.V. & New Papers), law library, visitation, commissary and sick call April 6, 2017 to April 12, 2017; at a RIKERS ISLAND jail (OBCC). Dinner was even passed out at 11:30PM. Plaintiff was punished for no reason. There is no incident or report related to Plaintiff. (See EXHIBIT J)

17-PSA6 Housing Bureau PO CARLOS PIMENTEL, PO CARLOS THOMAS, PO WILLIE THOMPSON, and RAVIKALA PUTTAMADU M.D. gave fabricated statements; and violated Plaintiff's Constitutional Rights.

PIMENTEL, THOMAS, THOMPSON, FDNY EMT's JOHN DOE DARKSKIN and JOHN DOE LIGHTSKIN watched, laughed and participated in the excessive force and sodomy of Plaintiff.

INJURIES:

If you were injured as a result of these actions, describe your injuries and what medical treatment, if any, you required and received.

Tooth removal, head aches, back pain, scars (multiple), bled from knees, elbows, shoulders, wrist & ankles, thighs, anal, head for over 50 days. Dizziness, fear, paranoia, and nightmares, degraded.

RAVIKALA PUTTAMADU MD treated plaintiff at Harlem Hospital but did not address several wounds other than split above left eye. Rikers

Island medical treatment falls below a Constitutional level of care.

Plaintiff suffers from blurred vision since incident. Plus depression.

VI. RELIEF

State briefly what money damages or other relief you want the court to order.

8th Amendment violation because of deliberate indifference and cruel & unusual punishment due to inhumane treatment and assault 2nd degree & sodomy. Violation of the 4th Amendment and 14th Amendment. The 4th because of illegal search and harassing the plaintiff with misconduct, fabricated reports and verbal/physically abusive tactics. Illegal procedures violating the Miranda Rights & rules and Constitutional Laws in Federal and State(s) Constitutional Laws & C.P.L. rules/ Governmental, State, City Guidelines. Plaintiff seeks Compensatory

damages, cost of legal filing fees and attorney fees, Monetary and Beneficial Amount of U.S. Currency in total Amount of \$100,000,000 (ONE HUNDRED MILLION DOLLARS). Due to inhumane treatment, pain and mental anguish cause by name/said Defendant(s) involved in the Civil Action of Deliberate indifference Assault 2nd Degree, Sodomy, Robbery, Cruel and Unusual Action(s), Racial Profiling set upon Plaintiff by Defendant(s) in this Civil Rights Action Complaint 42 U.S.C. §1983.

LEVAR T. HENRY, born NEW YORK, NEW YORK.

VII. PLAINTIFF'S CERTIFICATION AND WARNINGS

By signing below, I certify to the best of my knowledge, information, and belief that: (1) the complaint is not being presented for an improper purpose (such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation); (2) the claims are supported by existing law or by a nonfrivolous argument to change existing law; (3) the factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the complaint otherwise complies with the requirements of Federal Rule of Civil Procedure 11.

I understand that if I file three or more cases while I am a prisoner that are dismissed as frivolous, malicious, or for failure to state a claim, I may be denied *in forma pauperis* status in future cases.

I also understand that prisoners must exhaust administrative procedures before filing an action in federal court about prison conditions, 42 U.S.C. § 1997e(a), and that my case may be dismissed if I have not exhausted administrative remedies as required.

I agree to provide the Clerk's Office with any changes to my address. I understand that my failure to keep a current address on file with the Clerk's Office may result in the dismissal of my case.

Each Plaintiff must sign and date the complaint. Attach additional pages if necessary. If seeking to proceed without prepayment of fees, each plaintiff must also submit an IFP application.

APRIL 24, 2017

Dated

Plaintiff's Signature

LEVAR

T.

HENRY

First Name

Middle Initial

Last Name

1600 HAZEN STREET OBCC

Prison Address

EAST ELMHURST

NEW YORK

11370

County, City

State

Zip Code

Date on which I am delivering this complaint to prison authorities for mailing: 4/24/2017